

Justification and Approval
for Other than Full and Open Competition – FAR Part 6

1. Contracting Activity:

U.S. Army Corps of Engineers (USACE), Wilmington District (SAW), 69 Darlington Ave., Wilmington, NC 28401

2. Description of Action Being Approved:

Approval is sought to award a modification to increase the contract maximum not-to-exceed (NTE) amount on the UASCE Wilmington District Single Award Task Order Contract (SATOC) W912PM21D0004, with W-T Federal Joint Venture, for Design-Build & General Construction in support of Fort Bragg NC, 28310. The modification will increase the contract capacity by \$15,000,000.00 from \$24,500,000.00 to \$39,500,000.00, in order to fulfill known requirements for the Fort Bragg Sustainment, Restoration, and Modernization (SRM) program. Funds utilized for task orders on this contract will come from O&M funding.

3. Description of Supplies/Services:

The primary purpose of this Indefinite Delivery-Indefinite Quantity contract is for General Construction and Design/Build Construction for SRM projects at Fort Bragg NC. The tool provides repairs, renovations, new construction and alterations to facilities and utilities belonging to the Government at Fort Bragg NC.

This modification to add additional capacity will allow the Government to continue to support the programmed service, repair, and maintenance as well as construction requirements for Ft. Bragg and meet anticipated actions/requirements in excess of the programmed expenditures at award.

The SATOC was awarded by CESAW on April 7, 2021, with a maximum capacity of \$24,500,000.00. It's primary purpose is the support of the CESAW customers on Ft Bragg:

W912PM21D0004 was awarded for a base period of performance not to exceed one (1) year, April 7, 2021, to April 6, 2022, and four (4) one (1) year option periods.

The SATOC has a broad scope of diverse requirements in support of Fort Bragg consisting of but not limited to:

- a. New construction, rehabilitation, renovation, and repair of buildings, building additions, pre-engineered buildings and other structures (e.g. open bay pre-engineered, storage facilities, training ranges, etc.).

- i. Building renovations to include: floors, ceilings, walls, windows, doors, painting, electrical & mechanical upgrades, etc., furniture incidental to construction (e.g. workstations),
 - ii. Lead, asbestos and mold remediation,
 - iii. interior and/or exterior painting of new and existing facilities, and work incidental to surface deterioration (e.g. patching drywall, replacing siding, trim work, etc).
- b. Design and construction of the following types of facilities or their equivalent or similar commercial or institutional types may include but not be limited to: Administrative & Office Buildings, Recreational & Storage Facilities, Vehicle Maintenance Facilities, and Warehouses
- c. Rehabilitation, maintenance, or repair of electrical systems
 - d. Rehabilitation, maintenance, or repair of mechanical systems
 - e. Rehabilitation, maintenance, or repair of plumbing systems
 - i. sanitary sewer, domestic water lines,
 - ii. backflow preventers, pumps, water coolers, etc.
 - iii. fire suppression systems (fire alarm systems, sprinkler system, etc.)
 - f. Rehabilitation, maintenance or repair of interior and exterior utility systems and lines.
 - i. Interior and exterior high and low voltage electrical lines, communication lines, (telephone & data lines),
 - ii. communication systems, security & security camera systems and cabling.
 - iii. Natural gas, water, storm sewer, sanitary sewer and propane gas lines.
 - iv. Design, installation, and testing of new and existing emergency generator systems, automatic transfer switches, and emergency power connections into existing electrical systems.
 - g. Rehabilitation, maintenance or repair of roof and roofing systems
 - h. Renovation, repairs and/or upgrades of streets, concrete aprons and pads, sidewalks, decorative pavers, landscaping & irrigations systems, seeding/sodding, parking lots, traffic lines/markings/signs.
 - i. Work can also include the following, but not be limited to: site preparation, earthwork, grading, excavation and filling, clearing and grubbing, shoreline protection, surveying, storm water management, storm drainage systems and erosion control.
 - j. Work incidental to the tasks performed in any of the above paragraphs shall be included.

Both SOTF and JSOC at Ft. Bragg are preparing their FY25 acquisition plans and anticipate awarding between \$12,000,000.00 and \$15,000,000.00 in SRM for this upcoming fiscal year (FY) 25.

SOTF – With the SRM program revitalized at Ft. Bragg, engagement has been focused on the efficient production of contract solutions. The SOTF projects currently being worked for FY25 are:

SF-00010-25C SOTF Drainage Repair Package C with an estimated cost of \$2,400,000.00. This project is for design and construct repairs to Engineer Yard to control and mitigate storm flows during heavy rain events. Site has insufficient drainage. Work includes new stormwater structures to include catch basins and larger culverts.

SF-00010-25D SOTF Repair Package D estimated at \$1,635,000.00 is to design and construct repairs to several areas to control and mitigate storm flows during heavy rain events. Sites insufficient drainage. Work includes new stormwater structures to include catch basins and larger culverts.

SF-00005-25 SOTF – JAG Secure Area estimated at \$1,000,000.00 is to design and construct secure (DCIF) area for the JAG within SOTF to include all STC requirements as well as TEMPEST measures. Work also includes security measures and construction of non-cleared workspaces.

It is anticipated there will be several projects developed from SF-00010-22 H&H study with an estimated value of \$2,000,000.00.

FY25 total expected opportunity in SOTF is \$7,035,000.00.

JSOC – SRM program for JSOC has also been beneficial to accomplish immediate support. The FY23 program resulted in \$4.4M awarded and \$5.8M was awarded for FY24. Identified programs in FY25 include:

Renovations of Building 3-3352. Estimated at \$2,000,000, this project is to design and renovate a large open space by conversion into training spaces. Work includes STC50 partitions, new communication (NIPR+SIPR) as well as power.

JSOC Main 3-3130 Shelter estimated at \$1,800,000.00 is for the design and construct a large canopy over current guard booth at the JSOC Main entrance.

JSOC – ATF Repair Range 88A with expected price of \$1,000,000.00 design and construct repairs to range 88 (\$200M). Work includes additional drainage systems, construction of new concrete pads for storage and existing buildings as well as berm work to prevent erosion and settlement.

Total expected opportunity in FY25 for JSOC is \$4.8M.

The modified additional capacity will allow the Government to continue supporting

programmed service, repair, and maintenance as well as construction requirements for Ft. Bragg and meet anticipated actions/requirements more than the programmed expenditures at award. The excess expenditures arise from lack of remaining capacity for W912PM21D0004, with remaining capacity at \$4,518,052.72 halfway through the year 3 option and expected awards between \$12M and \$15M in SRM this upcoming fiscal year (FY) 25.

This action is needed to retain the ability to continue to have the incumbent contractor to execute requirements onboard Ft. Bragg until award of a new competitively awarded replacement contract can be put in place.

4. Authority Cited Permitting Other Than Full and Open Competition:

In accordance with 10 United States Code 3204(a)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2)(iii)(B), "Unacceptable delays in fulfilling the agency's requirements."

5. Rationale Justifying the Authority Cited:

BACKGROUND

There are two (2) General Construction and Design/Build Construction SATOCs for the SRM Program at Fort Bragg.

- a. W912PM21D0004
- b. W912PM21D0005
 - i. The original SB SATOC IDIQs were properly competed at the time of original award, which resulted in two (2) awards from RFP W912PM20R0029. With similar scopes of work, the two contractors received individual awards with \$24,500,000.00 maximum capacity.
 - ii. W912PM21D0005 is no longer viable for use in meeting the customer programmed requirements. With the reasonable expectation that there needs to be capacity to support critical modifications to such requirements, the need exists to expand the capacity on W912PM21D0004 considering the contract period of performance is not being extended on the other action.

JUSTIFICATION

This modification constitutes a follow-on contract. The work they are performing on Ft Bragg is specific to our SATOC holders and is necessary for the continued support of the SRM and construction mission.

Per FAR 6.302-1(a)(2)(iii): For DoD, NASA, and the Coast Guard, services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in:

- I. Unacceptable delays in fulfilling the agency's requirements. (See 10 U.S.C. 3204(b)(B)).
- i. Each of the 7 projects listed above cannot wait on another procurement method. Their importance to the SOF community on Ft. Bragg and continued efforts in the SRM program for this customer is vital to the safety of the installation, welfare of the troops, and prosecution of the training mission. Moving to another procurement method would cause critical delays and potentially result in a loss of ability to execute the mission.
 - ii. Increased engineering efforts. SATOC contracts have pre-established Division 00 and Division 01 specifications. These specifications for each project would need to be edited/formatted for each individual project
 - iii. Increase effort in cost preparation. SATOC contracts utilize RS Means Cost Works for standardized price book information. As part of the SATOC processes, the Government and contractors meet to discuss and agree on the CSI line items from the price book. This ensures both parties are "on the same page" when developing costs. Other contract methods do not require this and can result in significant cost variations.
 - iv. Increased effort in cost negotiation. SATOC contracts utilize RS Means Cost Works and pre-established fully burdened markups for home office overhead, profit, and bonding along with standardized rates for Field Office Overhead. Utilizing other contracting procurement methods would require development of formal HOOH, FOOH, Bonding, Profit costs.
 - v. Increased effort for site access for prime contractor staff along with sub-contractors and design assistance. We maintain active lists of individuals (SATOC contractor staff, primary subcontractors and designers) cleared for access into restricted areas of Fort Bragg. Having to resubmit individual lists puts a burden on the SOCOM Area Office staff for list development and efforts by our command partners to vet and validate site access.
 - vi. Increase scrutiny on design firms. The SATOC contractors have established relationships with design firms with long time experience on Fort Bragg. They are familiar with the Fort Bragg Installation Design Guide, having years of experience with SAW, but also with SAS and DPW. New contractors and their design partners may not have the same experience with Fort Bragg, requiring extensive rework of designs and efforts by SAW project delivery team as well as DPW and our primary stakeholders
 - vii. Processing time to complete a new SB SATOC award and issue the first task order is 240-300 days. Therefore, the time required to complete the process and negotiation of a new IDIQ would not

support the immediate requirements. A task order on the SATOC can be accomplished in 30-45 days. The time difference is unacceptable.

- viii. Processing time to complete a stand-alone “C” contract for each requirement is 240 days each. Likewise, a task order on the SATOC can be accomplished in 30-45 days. The time difference is unacceptable.

IMPACT

Without this action CESAW will be unable to fulfill the schedule and budget outlined in the Operations work plans. The time necessary to contract this work using either a new SATOC, or stand-alone “C” contracts will result in the Fort Bragg’s SRM program failing. The effort necessary to overcome inefficiency in transitioning to a new contractor, outside of the existing SATOC or to another firm will result in the SRM program exceeding the work plan budget.

Additionally, any delays caused by an alternative acquisition method places the O&M program for both Fort Bragg and MOTSU at severe jeopardy this Fiscal Year. The timeframe for execution of any new action would be compressed to a point where acquisition strategies would be minimized to non-competitive solutions.

ALTERNATIVES

Stand-Alone Competitive: Competing the projects on a standalone basis or competing a new IDIQ is not in the best interest of the Government. The administrative effort required to award a new, contracts is not cost effective and cannot be completed timely, which affects the Government’s ability to meet mission essential requirements. It is essential to avoid administrative delays on re-procurement for needs that will secure high-level safety measures and quality of life for the customer bases being served. It is most advantageous for the Government to capitalize on the established relationships with this SATOC vehicle to ensure a collaborative environment conducive to addressing the unique challenges that such projects will impose.

Utilization of second SATOC: W912PM21D0005 is no longer viable for use in meeting the customer programmed requirements.

In summary, increasing the capacity of W912PM21D0004 by \$15,000,000.00 with W-T Federal Joint Venture gives the capacity needed for existing requirements with JSOC, SOTF, USASOC, or other projected work over the next 19 months, through the end of the SATOC. Issuing this modification to the capacity is the only alternative that will allow CESAW to meet multiple components of its missions in support of Ft. Bragg, NC without causing significant project delays and cost.

6. Description of Efforts to Obtain Competition:

A Notice of Intent will be published on SAM.gov on 1 May, 2025, proposing to issue to a sole source modification for \$15,000,000.00 to W-T Federal Joint Venture to increase the capacity of W912PM-21-D-0004.

7. Actions to Increase Competition:

In accordance with FAR 6.305, the approved J&A will be posted on SAM.gov within 14 days after award of the contract modification informing industry of the Government's intent to increase the capacity of the Design-Build & General Construction in support of Fort Bragg SATOC.

The SRM requirement for follow on contracts at Fort Bragg has been discussed but no plans have been put in place yet. It is the intent to execute a SATOC for the following Fiscal Year considering this capacity expansion only fulfills the current Fiscal Year needs.

8. Market Research:

Discussions were held with all PDT stakeholders for possible contracting actions to support the time sensitive work at MOTSU and projected requirements for the eighteen (18) months. All parties agree that execution of the current work at Ft. Bragg is time sensitive. It was determined that the award of the modification to increase capacity was the most prudent action for the interests of the Government.

9. Interested Sources:

Not Applicable

10. Other Facts:

- a. Procurement History: See subsection 5 above
- b. Accessibility of Information: Not Applicable
- c. Acquisition Data Availability: Not Applicable
- d. The underlying SATOC is scheduled to be competitively replaced at the end of the ordering period. Replacement contracts are in the early stages of the acquisition process. These SATOCs will be used for future Task Orders to increase competition among the unrestricted and small business pools.

Approval

Based on the foregoing justification, I hereby approve the award of a modification to increase, by \$15,000,000.00 from \$24,500,000.00 to \$39,500,000.00, the contract maximum not-to-exceed (NTE) amount on the UASCE Wilmington District Single Award Task Order Contract (SATOC) W912PM21D0004 for Design-Build & General Construction in support of Fort Bragg NC, 28310, on an other than full and open competition basis pursuant to the authority of *10 USC 3204(a)(1) and 41 USC 3304(a)(1), only one responsible source and no other supplies or service will satisfy agency requirements, as implemented in the Federal Acquisition Regulation (FAR) Subpart 6.302-1(a)(2)(iii) entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."*, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

Signature: _____ Date: _____

Title: Command Advocate for Competition